Programme: B. E. Common to All Branches
CIE 2 - SCHEME & SOLUTIONS
Research Methodology and Intellectual Property Rights - AL58
Date: 21.01.2025 (03:00 – 04:00 PM)

1a) Briefly explain the step by step procedure for obtaining a Patent

1. Submission of application,
2. filing provisional and complete specification,
3. publication and examination of the application,
4. communication to the applicant,
5. opposition proceedings to the grant of the patent,
6. grant of patent,

Brief explanation of the above points. **7M**

1b) What is a copyright? Explain its characteristics.

Copyright (or author's right) is a legal term used to describe the rights that creators have over their literary and artistic works. Works covered by copyright range from books, music, paintings, sculpture, and films, to computer programs, databases, advertisements, maps, and technical drawings. Copyright is a type of intellectual property that protects original works of authorship as soon as an author fixes the work in a tangible form of expression. **1M**

1. Creation of a Statute
2. Some form of Intellectual Property
3. Monopoly Right
4. Negative Right
5. Multiple Right
6. Copyright only in the form of an Idea
7. Neighbouring Rights

Brief explanation of the above points. **7x1M = 7M**

2a) Discuss about non patentable inventions.

1. A discovery, scientific theory or mathematical method

2. Literary, dramatic, musical or artistic work or any other aesthetic creation

3. A scheme, rule or method for performing a mental act, playing a game or doing business, or a program for a computer

4. The presentation of information

5. An invention, the publication or exploitation of which is offensive, immoral or anti-social

6. Any plant or animal variety or any biological process for the production of plants and animals

7. An invention which is frivolous or which claims anything obviously contrary to well established natural laws

8. An invention the primary or intended use of which could be contrary to public order or morality of which causes serious prejudice to human, animal, or plant life or health or to the environment.

9. The mere discovery of scientific principle or the formulation of an abstract theory or discovery of any living thing or non-living substance occurring in nature.

10. A substance obtained by mere admixture resulting only in aggregation of the properties of the components thereof or process for producing such substance.

11. The mere arrangement or re-arrangement or duplication of known devices each functioning independently of one another in a known way.

12. A method of agriculture or horticulture.

13. Any process for the medicinal, surgical, curative, prophylactic, diagnostic, therapeutic or other treatment or human beings or any process for a similar treatment of animals to render them free of disease or to increase their economic value or that of their products.

14. Plants and animals in whole or any part thereof other than micro-organisms but including seeds, varieties and species and essentially biological processes for production or propagation of plants and animals.

15. A mathematical or business method or computer program per se or algorithms.

16. Topography of integrated circuits.

17. An invention which, in effect, is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components.

18. Inventions relating to atomic energy are not patentable.

Any 7 points **7 x 1 M = 7M**

2b) Explain the procedure for registering a design

The procedure consists of the following steps:

1. Submission of application
2. Documents to be filed with the application
3. Acceptance / Objections / Refusal
4. Removal of Objections / appeal to Central Government
5. Decision of Central Government
6. Registration of a Design

With Brief explanation of the above points. **8M**

3a) Describe Basmati Rice patent case in detail.

In late 1997, the United States Patent and Trademark Office granted a patent to Ricetec Inc., the United States based multinational company headquartered in Alvin, Texas for a novel 'grain' also known as 'basmati'. The company claimed the protection of new varieties of 'basmati' crops with better qualities than the original crop. It has been using several versions of the crop by selling it with the name 'Jasmati' or 'Kasmati' in the international rice market. Moreover, it was also professed to have developed a novel strain of the aromatic rice by inter-breeding of basmati rice with another crop known as American basmati or 'Texmati'. The patent was granted to the company for basmati rice grains and variety by USPTO. **2M**

It is known world-wide that the long-grain aromatic rice known as 'basmati' has been produced widely in the Sub-Himalayan region. Basmati rice is one of the best-known varieties of rice originally cultivated in India, Pakistan and certain regions of South Asia. India is a diverse country with traditional knowledge ranging from Yoga to Ayurveda. Dr. Vandana Shiva, an Indian environmental activist once quoted that, "Bio-piracy (is) biological theft; illegal collection of indigenous plants by corporations who patent them or their own use and benefit". **2M**

The importance of analyzing the issue of Basmati Rice is since India has a bundle of traditional knowledge and rich heritage which if patented by other nations can put restrictions on use of such resources by the indigenous communities. India is a signatory country which complies with the provisions stated in the Trade related aspects of Intellectual Property Rights (TRIPs) for intellectual property, wherein, most countries have been committed to provide minimum standards of protection to intellectual property.

Intellectual properties like plant variety, patents, geographical indications etc. are served extremely crucial for growth of agriculture in a developing country like India. The geographical Indications can be elucidated as particular goods originating from a country, region or a locality due to several special circumstances, quality and reputation of the product. They are gaining a rapid popularity in the field of trade and commerce and recognize the true heritage of a country in terms of specified goods. This is due to the special quality of such products being rendered because of their goodwill.

Later, the patent was opposed by the Indian NGOs like Research Foundation for Science, Centre for Food Safety and ultimately, Centre for Scientific and Industrial Research too, objected to it. The Indian sub-continent protected its traditional crop basmati while Thailand contested for the safeguarding of its claim for jasmine rice. In 2000, after examining evidence, the Indian Government challenged the patent claims by the company. **2M**

Issues raised

- Whether the name 'basmati' is a 'generic' term or specifically originates from the aromatic rice grown in India and various South-Asian countries?
- Whether the grain developed by Ricetec Inc. is a novel variety and strain?
- Is Ricetec Inc. guilty of bio-piracy and violation of traditional knowledge belonging to indigenous communities of Southern-Asian countries?
- Whether the patent granted to Ricetec must be revoked due to protests by various NGOs and Indigenous Communities?
- Whether USPTO's decision to grant patent to Basmati Rice violates TRIPs Agreement? **2M**

3b) Explain the remedies against infringement of copyright

a) Civil Remedies
   - Anton Piller
   - Interlocutorty Injunction
   - Damages or Account of Profits **3M**

b) Criminal Remedies **2M**

c) Administrative Remedies **2M**

With Brief explanation of the above

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